

Mehboob v. State of U.P.

High Court of Judicature at Allahabad · Division Bench (Court No. 3) · 12 April 2022 · Writ - C No. 7610 of 2022 · **Writ disposed; liberty to file Para 6.8 objection within three weeks**

HEADNOTE

Writ seeking quashing of a recovery citation disposed of without any opinion on merits, with liberty to the consumer to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within three weeks, to be decided by a speaking and reasoned order after hearing.

FACTUAL SUMMARY

Mehboob approached the Allahabad High Court in Writ-C No. 7610 of 2022 against the State of Uttar Pradesh and three others. He sought a writ of certiorari quashing the recovery citation dated 24 January 2022 issued by respondent no. 4. On instructions, counsel for respondent nos. 2 and 3 told the Court that the petitioner could submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, which respondent no. 3 would consider and decide by a speaking and reasoned order within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Objection under Para 6.8 against a recovery citation

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within three weeks, along with a copy of the order. If submitted in time, respondent no. 3 or the competent authority shall decide it in accordance with law by a speaking and reasoned order after affording a reasonable opportunity of hearing. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The Court left the recovery citation unexamined and relegated the petitioner to an objection under Para 6.8, to be decided in accordance with law by a speaking order after hearing. ¶ 1

fresh-objection-under-clause-6.8 Liberty was given to file a fresh objection under Para 6.8 within three weeks, accompanied by a copy of the order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE RECOVERY CITATION DATED 24 JANUARY 2022

The Court expressed no opinion on merits; the objection is left to the competent authority. ¶ 1